

**26STCV14439 26STCV14439**

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-03

Motion: DEFENDANT DOCTOR'S ASSOCIATES LLC'S DEMURRER TO PLAINTIFF'S COMPLAINT

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C731%2C09%2F03%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C731%2C09%2F03%2F2026)

Source SHA-256: 1190b4f348ffb2b4da22306feb433e691f6f0d5808cef2d763bd463ac99f437f

Case Number: 26STCV14439 Hearing Date: September 3, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS  
ANGELES - CENTRAL DISTRICT

LILIANA GARCIA and ELIZABETH  
CRUZ, on behalf of themselves and all other similarly situated aggrieved  
employees,

Plaintiffs,

vs.

S & R SUBWAY, INC., a  
corporation, ARMAN GROUP, INC., a corporation, SURJIT MULTANI, AMRITA  
MULTANI, DOCTOR'S ASSOCIATES LLC, a limited liability corporation, and DOES 1  
through 50, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 26STCV14439

[TENTATIVE] ORDER RE: DEFENDANT

DOCTOR'S ASSOCIATES LLC'S DEMURRER TO PLAINTIFF'S COMPLAINT

Dept. 731

September 3, 2026

8:30 a.m.

Matter No. 14

Moving Party: Defendant, Doctor's Associates LLC

Opposing Party: Plaintiffs, Liliana Garcia and Elizabeth Cruz

Notice: OK

Background Facts

Pleadings

Plaintiffs Liliana Garcia and Elizabeth Cruz bring a representative PAGA action and individual claims against S & R Subway, Inc., Arman Group, Inc., Surjit Multani, and Amrita Multani (the "Franchisee Defendants"), Doctor's Associates LLC (the "Franchisor Defendant"), and Doe Defendants, alleging widespread violations of the California Labor Code and other statutes across seven Subway restaurants in Los Angeles County. The complaint asserts claims for PAGA civil penalties; paying wages with checks refused for insufficient funds; minimum wage violations under state law and the Los Angeles Minimum Wage Ordinance; failure to provide payroll and personnel records; failure to indemnify for losses; retaliation under the Labor Code and FEHA; denial of bereavement and kin care leave; failure to pay final wages; breach of contract; negligent misrepresentation; fraud; and violations of the Unfair Competition Law. Plaintiffs seek civil penalties, damages, restitution, injunctive relief, punitive damages, and attorneys' fees

Motions Before the Court

Now before the Court is Doctor's Associates, LLC's opposed demurrer to all fourteen causes of action alleged in the Complaint on the ground that the Complaint insufficiently alleges an employer-employee relationship between itself and Aggrieved Employees in the Complaint.

Demurrer

Meet and Confer

The moving papers establish a sufficient meet and confer process preceded the filing of Defendant's demurrer. (Demurrer, Decl., ¶ 3, Ex. B; see Code Civ. Proc., § 430.41, subd. (a)(3)(A).)

## Request for Judicial Notice

The Court declines to take judicial notice of a trial court order made by a different judicial officer in an extraneous legal action. (Opposition, RJN, ¶ 2, Ex. A.) “There is [...] a precondition to the taking of judicial notice in either its mandatory or permissive form—any matter to be judicially noticed must be relevant to a material issue.” (People ex rel. Lockyer v. Shamrock Foods Co. (2000) 24 Cal.4th 415, 422 fn. 2.) Here, the order proposed for notice is unrelated to this action and is advanced for a legal proposition despite being an unpublished trial court order. (See Cal. Rules of Court, rule 8.1115(a) [Subject to limited exceptions, “an opinion of a California Court of Appeal or superior court appellate division that is not certified for publication or ordered published must not be cited or relied on by a court or a party in any other action”].)

## c. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; see Code Civ. Proc., § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (Committee on Children’s Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212, superseded by statute as stated in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) “[E]ach evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, Jones v. Lodge at Torrey Pines

Partnership (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, “does not admit contentions, deductions or conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A demurrer may only be used to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318 (Blank).) The face of the complaint includes exhibits attached to the complaint. (Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94.) If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence. (Holland v. Morse Diesel Intern., Inc. (2001) 86 Cal.App.4th 1443, 1447, superseded by statute on other grounds as stated in White v. Cridlebaugh (2009) 178 Cal.App.4th 506, 521.)

## Discussion

The essence of the dispute in the parties' papers is whether, for pleading purposes, the Complaint sufficiently alleges facts establishing that Doctor's Associates, LLC, is a joint employer of the Aggrieved Employees in the Complaint.

Here, for insufficient allegations of control, the Court finds in favor of the Franchisor Defendant, Doctor's Associates, LLC.

As argued in Doctor's Associates' reply, the Complaint simply does not allege the kind of control found necessary in case law such as Medina v. Equilon Enterprises, LLC (2021) 68 Cal.App.5th 868 (Medina), a case on which Plaintiffs' papers greatly rely. (Compare Reply, pp. 2-4, with Opposition, 7, 9-15.)

In Medina, Shell exercised extensive control over the operation of more than 300 California gas stations through its nonnegotiable MSO agreements, which required operators to lease station facilities, perform all work at the sites (including fuel-service work outside the lease), accept Shell-set reimbursement amounts, and operate stations in fixed clusters subject to Shell's unilateral modification or termination. (Medina, supra, 68 Cal.App.5th at p. 871.) Shell mandated use of its proprietary point-of-sale system, required that fuel

proceeds be paid directly to Shell, imposed detailed operating rules through manuals, required daily reporting, conducted regular inspections, controlled station hours, and held access rights to operators' bank accounts for unilateral withdrawals and deposits. (Id. at p. 872.) Shell further retained audit rights over payroll records and possessed contractual authority to remove operator employees for good cause, while dictating specific employee tasks such as fuel-equipment checks, price surveys, inventory control, customer-service procedures, uniform requirements, and pump-test documentation. (Ibid.) Shell personnel also trained operators' employees and, at times, directly threatened discipline or termination for noncompliance with Shell policies, demonstrating Shell's practical influence over employment conditions despite operators serving as the formal employers. (Id. at p. 873.)

In contrast, here, the Complaint alleges that "Doctor's Associates indirectly employs Plaintiffs and other Aggrieved Employees and exercises control over Plaintiffs' and other Aggrieved Employees' wages, hours, and working conditions, including day-to-day authority over employee direction, supervision and/or discipline, as follows [...]." (Complaint, ¶ 24.)

The Court notes that it reads the "including day-to-day" allegations as a descriptor for the independent clause reading "Doctor's Associates indirectly employs Plaintiffs and other Aggrieved Employees and exercises control over Plaintiffs' and other Aggrieved Employees' wages, hours, and working conditions ... as follows," with the commas surrounding the "including day-to-day" allegations limiting the descriptor to preceding language alone. (Complaint, ¶ 24.) Illustrated, Plaintiffs' allegations are tantamount to, 'Defendant controls Plaintiffs' employment, including controlling work hours, as follows,' rather than, 'Defendant controls Plaintiffs' employment, including controlling work hours as follows.' Consequently, the Court reads the sub-paragraphs to paragraph 24 as involving the totality of facts available in the universe of the Complaint to support control for joint employment purposes.

A review of those subparagraphs shows allegations that Doctor's Associates, LLC, exercised indirect influence over the Aggrieved Employees' employment by way of requiring franchisees to use its systems, follow its operational rules, transmit data, complete its training, and submit to its inspections (Complaint, ¶¶ 24.a.-24.e.), allegations which fall well short of the significant control in Medina.

Consequently, the Complaint fails  
to allege the control necessary for employment under Medina.

The Court adopts its above  
reasoning to also determine that Plaintiffs' allegations fall short of indirect-  
and direct control, and the suffer or permit to work standards of Martinez  
v. Coombs (2010) 49 Cal.4th 35, 52.

e. Conclusion

Defendant Doctor's Associates, LLC's  
demurrer is SUSTAINED, with leave to amend.

Plaintiff SHALL have 14 days from  
notice of this Order (unless waived) to file an amended pleading responsive to  
this Order.

Defendant Doctor's Associates, LLC,  
is ordered to give notice.

Parties who intend to submit  
on this tentative must send an email to the court at [email protected] indicating intention to submit on the tentative  
as directed by the instructions provided on the court website at [www.lacourt.org](http://www.lacourt.org). If  
the department does not receive an email indicating the parties are submitting  
on the tentative and there are no appearances at the hearing, the motion may be  
placed off calendar. If a party  
submits on the tentative, the party's email must include the case number and  
must identify the party submitting on the tentative. If the parties do not submit on the  
tentative, they should arrange to appear remotely.

DATED: September 3, 2026 \_\_\_\_\_

MARK C. KIM

Judge of the  
Superior Court